

Federal Constitution

NOTES

Art. 150

Clause (1)

- a. The words “whether by war or external aggression or internal disturbance,” which appeared after the words “is threatened,” were deleted by Act 26/1963, subsection 39(1), in force from 16-09-1963.
- b. Substituted by Act A514, paragraph 15(a), in force from 15-05-1981. The earlier Clause (1) read as follows:

“(1) If the Yang di-Pertuan Agong is satisfied that a grave emergency exists whereby the security or economic life of the Federation or of any part thereof is threatened, he may issue a Proclamation of Emergency.”.
- c. The words “Prime Minister” substituted for the words “Yang di-Pertuan Agong” and the words “shall advise the Yang di-Pertuan Agong accordingly and the Yang di-Pertuan Agong shall then” substituted for the word “may” both by Act A566, paragraphs 20(a) and (b), in force from 16-12-1983.

Clause (2)

- a. Substituted by Act A514, paragraph 15(a), in force from 15-05-1981. The earlier Clause (2) read as follows:

“(2) If a Proclamation of Emergency is issued when Parliament is not sitting, the Yang di-Pertuan Agong shall summon Parliament as soon as may be practicable, and may, until both Houses of Parliament are sitting, promulgate ordinances having the force of law, if satisfied that immediate action is required.”.
- b. The words “Prime Minister” substituted for the words “Yang di-Pertuan Agong” and the words “and advises the Yang di-Pertuan Agong accordingly” were inserted after the words “such event” both by Act A566, paragraphs 20(c) and (d), in force from 16-12-1983.

See Proclamation in L.N. 271/1964, P.U. 339A/1966, P.U. (A) 145/1969.

Clause (2A)

- a. Added by Act A514, paragraph 15(b), in force from 15-05-1981.
- b. The words “to issue a Proclamation of Emergency” were inserted after the words “by this Article”, the words “as may be advised by the Prime Minister,” were inserted after the words “different circumstances”. The words “by the Yang di-Pertuan Agong” were deleted. These amendments were made by Act A566, paragraphs 20(e), (f) and (g), in force from 16-12-1983.

Clause (2B)

- a. Added by Act A514, paragraph 15(b), in force from 15-05-1981.
- b. The words “the Prime Minister is satisfied that certain circumstances exist which render it necessary that immediate action be taken, he shall advise the Yang di-Pertuan Agong to promulgate such ordinances as the Prime Minister deems necessary, and the Yang di-Pertuan Agong shall then accordingly promulgate such ordinances” substituted for the words “the Yang di-Pertuan Agong is satisfied that certain circumstances exist which render it necessary for him to take immediate action, he may promulgate such ordinances as circumstances appear to him to require” by Act A566, paragraph 20(h), in force from 16-12-1983.

Clause (2c)

- a. Added by Act A514, paragraph 15(c), in force from 15-05-1981.
- b. The words “of the Yang di-Pertuan Agong” were deleted by Act A566, paragraph 20(i), in force from 16-12-1983.

Clause (3)

- a. The present Clause was substituted by Act 10/1960, section 29, in force from 31-05-1960, and replaced the original Clause which read as follows:

“(3) A Proclamation of Emergency and any ordinance promulgated under Clause (2) shall be laid before both Houses of Parliament and, if not sooner revoked, shall cease

under Clause (7); and the power of the Yang di-Pertuan Agong to promulgate ordinances under Clause (2B) may be exercised in relation to any matter with respect to which Parliament has power to make laws, regardless of the legislative or other procedures required to be followed, or the proportion of the total votes required to be had, in either House of Parliament.

(3) A Proclamation of Emergency and any ordinance promulgated under Clause (2B) shall be laid before both Houses of Parliament and, if not sooner revoked, shall cease to have effect if resolutions are passed by both Houses annulling such Proclamation or ordinance, but without prejudice to anything previously done by virtue thereof or to the power of the Yang di-Pertuan Agong to issue a new Proclamation under Clause (1) or promulgate any ordinance under Clause (2B).

(4) While a Proclamation of Emergency is in force the executive authority of the Federation shall, notwithstanding anything in this Constitution, extend to any matter within the legislative authority of a State and to the giving of directions to the Government of a State or to any officer or authority thereof.

(5) Subject to Clause (6A), while a Proclamation of Emergency is in force, Parliament may, notwithstanding anything in this Constitution make laws with respect to any matter, if it appears to Parliament that the law is required by reason of the emergency; and Article 79 shall not apply to a Bill for such a law or an amendment to such a Bill, nor shall any provision of this Constitution or of any written law which requires any consent or concurrence to the passing of a law or any consultation with respect thereto, or which restricts the coming into force of a law after it is passed or the presentation of a Bill to the Yang di-Pertuan Agong for his assent.

(6) Subject to Clause (6A), no provision of any ordinance promulgated under this Article, and no provision of any Act of Parliament which is passed while a Proclamation of Emergency is in force and which declares that the law appears to Parliament to be required by reason of the emergency, shall be invalid on the ground of inconsistency with any provision of this Constitution.

(6A) Clause (5) shall not extend the powers of Parliament with respect to any matter of Islamic law or the custom of the

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Art. 150—(cont.)

to be in force—

- (a) a Proclamation at the expiration of a period of two months beginning with the date on which it was issued; and
- (b) an ordinance at the expiration of a period of fifteen days beginning with the date on which both Houses are first sitting,

unless, before the expiration of that period, it has been approved by a resolution of each House of Parliament.”.

- b. The words “Clause (2B)” substituted for the words “Clause (2)” by Act A514, paragraph 15(c), in force from 15-05-1981.
- c. The words “of the Yang di-Pertuan Agong” were deleted by Act A566, paragraph 20(j), in force from 16-12-1983.

Clause (8)(a)

The words “Prime Minister mentioned in Clauses (1), (2) and (2B)” substituted for the words “Yang di-Pertuan Agong mentioned in Clauses (1) and (2B)” by Act A566, paragraph 20(k), in force from 16-12-1983.

Clause (8)(b)(i)

The words “whether or not arising under Clause (2)” were inserted after the words “stated in Clause (1)” by Act A566, paragraph 20(l), in force from 16-12-1983.

Note:

Article 150 was again amended by Act A584, section 3, in force from 20-01-1984, which restored the original provisions as it was before the amendment made by Act A566 as it now appears.

Clause (5)

- a. The present Clause was substituted by Act 26/1963, subsection 39(2), in force from 16-09-1963.
- b. The words “or in the Constitutions of the State of Sarawak” were inserted by Act 68/1966, paragraph 3(1)(a), after the word “Constitution” where it first occurs, in force from 20-09-1966, and will cease to have effect six months after the date on which the Proclamation of Emergency issued by the Yang di-Pertuan Agong on 14-09-1966 in P.U. 339A/1966 ceases to have effect. The original Clause read as follows:

“(5) While a Proclamation of Emergency is in force Parliament may, notwithstanding anything in this Constitution, make laws with respect to any matter enumerated in the State List (other than any matter of Muslim law or the custom of the Malays), extend the duration of Parliament or of a State Legislature, suspend any election, and make any provision consequential upon or incidental to any provision made in pursuance of this Clause.”.

Clause (6)

- a. The present Clause was inserted by Act 26/1963, subsection 39(2), in force from 16-09-1963. The original Clause read as follows:

“(6) No provision of any law or ordinance made or promulgated in pursuance of this Article shall be invalid on the ground of any inconsistency with the provisions of Part II, and Article 79 shall not apply to any Bill for such a law or any amendment to such a Bill.”.
- b. The words “or of the Constitution of the State of Sarawak” were inserted by Act 68/1966, paragraph 3(1)(b), after the word “Constitution” at the end thereof, in force from 20-09-1966, and will cease to have effect six months after the date on which the Proclamation of Emergency issued by the Yang di-Pertuan Agong on 14-09-1966 in P.U. 339A/1966 ceases to have effect.

Malays, or with respect to any matter of native law or customs in the State of Sabah or Sarawak; nor shall Clause (6) validate any provision inconsistent with the provisions of this Constitution relating to any such matter or relating to religion, citizenship, or language.

(7) At the expiration of a period of six months beginning with the date on which a Proclamation of Emergency ceases to be in force, any ordinance promulgated in pursuance of the Proclamation and, to the extent that it could not have been validly made but for this Article, any law made while the Proclamation was in force, shall cease to have effect, except as to things done or omitted to be done before the expiration of that period.

(8) Notwithstanding anything in this Constitution—

- (a) the satisfaction of the Yang di-Pertuan Agong mentioned in Clause (1) and Clause (2B) shall be final and conclusive and shall not be challenged or called in question in any court on any ground; and
- (b) no court shall have jurisdiction to entertain or determine any application, question or proceeding, in whatever form, on any ground, regarding the validity of—
 - (i) a Proclamation under Clause (1) or of a declaration made in such Proclamation to the effect stated in Clause (1);
 - (ii) the continued operation of such Proclamation;
 - (iii) any ordinance promulgated under Clause (2B);
or
 - (iv) the continuation in force of any such ordinance.

(9) For the purpose of this Article the Houses of Parliament shall be regarded as sitting only if the members of each House are respectively assembled together and carrying out the business of the House.

Restrictions on preventive detention

151. (1) Where any law or ordinance made or promulgated in pursuance of this Part provides for preventive detention—

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Art. 150—*(cont.)*

Clause (6A)

- a. Added by Act 26/1963, subsection 39(2), in force from 16-09-1963.
- b. The words “Islamic law” substituted for the words “Muslim law” by Act A354, section 45, in force from 27-08-1976.
- c. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clauses (8) & (9)

Added by Act A514, paragraph 15(d), in force from 15-05-1981.

- (a) the authority on whose order any person is detained under that law or ordinance shall, as soon as may be, inform him of the grounds for his detention and, subject to Clause (3), the allegations of fact on which the order is based, and shall give him the opportunity of making representations against the order as soon as may be;
- (b) no citizen shall continue to be detained under that law or ordinance unless an advisory board constituted as mentioned in Clause (2) has considered any representations made by him under paragraph (a) and made recommendations thereon to the Yang di-Pertuan Agong within three months of receiving such representations, or within such longer period as the Yang di-Pertuan Agong may allow.

(2) An advisory board constituted for the purposes of this Article shall consist of a chairman, who shall be appointed by the Yang di-Pertuan Agong and who shall be or have been, or be qualified to be, a judge of the Federal Court, the Court of Appeal or a High Court, or shall before Malaysia Day have been a judge of the Supreme Court, and two other members who shall be appointed by the Yang di-Pertuan Agong.

(3) This Article does not require any authority to disclose facts whose disclosure would in its opinion be against the national interest.

PART XII

GENERAL AND MISCELLANEOUS

National language

152. (1) The national language shall be the Malay language and shall be in such script as Parliament may by law provide:

Provided that—

- (a) no person shall be prohibited or prevented from using (otherwise than for official purposes), or from teaching or learning, any other language; and
- (b) nothing in this Clause shall prejudice the right of the Federal Government or of any State Government to preserve and sustain the use and study of the language of any other community in the Federation.

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Art. 151

Clause (1)(b)

- a. The original paragraph was substituted by Act 10/1960, section 30, in force from 31-05-1960 and read as follows:
“(b) no citizen shall be detained under that law or ordinance for a period exceeding three months unless an advisory board constituted as mentioned in Clause (2) has considered any representations made by him under paragraph (a) and has reported, before the expiration of that period, that there is in its opinion sufficient cause for the detention.”.
- b. Act 10/1960, section 30, in force from 31-05-1960, substituted the original paragraph (b) with the following:
“(b) no citizen shall be detained under that law or ordinance for a period exceeding three months unless an advisory board constituted as mentioned in Clause (2) has considered any representations made by him under paragraph (a) and made recommendations thereon to the Yang di-Pertuan Agong.”.
- c. The present paragraph as it now appears, was substituted by Act A354, section 40, in force from 27-08-1976.

Clause (2)

- a. The words “and who shall be or have been, or be qualified to be, a judge of the Federal Court or a High Court, and shall before Malaysia Day have been a judge of the Supreme Court, and” substituted for the words “from among persons who are or have been judges of the Supreme Court or are qualified to be judges of the Supreme Court, and” and the words “Lord President of the Federal Court” substituted for the words “Chief Justice or, if at the time another judge of the Supreme Court is acting for the Chief Justice, after consultation with the judge” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Subsequently subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- c. This Clause was substituted by Act A767, section 5, in force from 11-05-1990 and read as follows:
“(2) An advisory board constituted for the purposes of this Article shall consist of a chairman, who shall be appointed by the Yang di-Pertuan Agong and who shall be or have been, or be qualified to be, a judge of the Supreme Court or a High Court, or shall before Malaysia Day have been a judge of the Supreme Court, and two other members, who shall be appointed by the Yang di-Pertuan Agong after consultation with the Lord President of the Supreme Court.”.
- d. The words “Federal Court, the Court of Appeal” substituted for the words “Supreme Court” where they first appear by Act A885, section 36, in force from 24-06-1994.

Art. 152

1. *See* Art. 161(5).
2. *See* National Language Acts 1963/1967 [Act 32].

Clauses (2) & (3): See Art. 161(1).

Clause (4)

- a. The words “Federal Court or a High Court” substituted for the words “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Subsequently subsection 18(2) of Act A566, in force from 16-12-1983, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.

(2) Notwithstanding the provisions of Clause (1), for a period of ten years after Merdeka Day, and thereafter until Parliament otherwise provides, the English language may be used in both Houses of Parliament, in the Legislative Assembly of every State, and for all other official purposes.

(3) Notwithstanding the provisions of Clause (1), for a period of ten years after Merdeka Day, and thereafter until Parliament otherwise provides, the authoritative texts—

(a) of all Bills to be introduced or amendments thereto to be moved in either House of Parliament; and

(b) of all Acts of Parliament and all subsidiary legislation issued by the Federal Government,

shall be in the English language.

(4) Notwithstanding the provisions of Clause (1), for a period of ten years after Merdeka Day, and thereafter until Parliament otherwise provides, all proceedings in the Federal Court, the Court of Appeal or a High Court shall be in the English language:

Provided that, if the Court and counsel on both sides agree, evidence taken in the language spoken by the witness need not be translated into or recorded in English.

(5) Notwithstanding the provisions of Clause (1), until Parliament otherwise provides, all proceedings in subordinate courts, other than the taking of evidence, shall be in the English language.

(6) In this Article, “official purpose” means any purpose of the Government, whether Federal or State, and includes any purpose of a public authority.

Reservation of quotas in respect of services, permits, etc., for Malays and natives of any of the States of Sabah and Sarawak

153. (1) It shall be the responsibility of the Yang di-Pertuan Agong to safeguard the special position of the Malays and natives of any of the States of Sabah and Sarawak and the legitimate interests of other communities in accordance with the provisions of this Article.

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Art. 152—(cont.)

3. *See* Art. 161(1).

4. The words “Federal Court, the Court of Appeal” substituted for the words “Supreme Court” by Act A885, section 37, in force from 24-06-1994.

Clause (5): See Art. 161(1).

Clause (6): Inserted by Act A30, section 5, in force from 10-03-1971.

Art. 153

See Art. 38(5), 159(5), 161A(2), (3) & (4).

(2) Notwithstanding anything in this Constitution, but subject to the provisions of Article 40 and of this Article, the Yang di-Pertuan Agong shall exercise his functions under this Constitution and federal law in such manner as may be necessary to safeguard the special position of the Malays and natives of any of the States of Sabah and Sarawak and to ensure the reservation for Malays and natives of any of the States of Sabah and Sarawak of such proportion as he may deem reasonable of positions in the public service (other than the public service of a State) and of scholarships, exhibitions and other similar educational or training privileges or special facilities given or accorded by the Federal Government and, when any permit or licence for the operation of any trade or business is required by federal law, then, subject to the provisions of that law and this Article, of such permits and licences.

(3) The Yang di-Pertuan Agong may, in order to ensure in accordance with Clause (2) the reservation to Malays and natives of any of the States of Sabah and Sarawak of positions in the public service and of scholarships, exhibitions and other educational or training privileges or special facilities, give such general directions as may be required for that purpose to any Commission to which Part X applies or to any authority charged with responsibility for the grant of such scholarships, exhibitions or other educational or training privileges or special facilities; and the Commission or authority shall duly comply with the directions.

(4) In exercising his functions under this Constitution and federal law in accordance with Clauses (1) to (3) the Yang di-Pertuan Agong shall not deprive any person of any public office held by him or of the continuance of any scholarship, exhibition or other educational or training privileges or special facilities enjoyed by him.

(5) This Article does not derogate from the provisions of Article 136.

(6) Where by existing federal law a permit or licence is required for the operation of any trade or business the Yang di-Pertuan Agong may exercise his functions under that law in such manner, or give such general directions to any authority charged under that law with the grant of such permits or licences, as may be required to ensure the reservation of such proportion of such permits or licences for Malays and natives of any of the States of Sabah and